

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION FOR SOLE SOURCE AND LIMITED COMPETITION

1. Agency: Defense Logistics Agency Contracting Activity: DLA Aviation at Tinker AFB, OK
 Document Identification Number: FD2030-24-00201 Solicitation Number: SPRTA1-24-R-0201



FAR Part 15



FAR Part 12



FAR Part 13.5

2. The action being approved is the acquisition of supplies/services on other than a full and open competition basis.



New Action



Amendment: _____

3. The supplies/services required to meet the using activity's needs are described as follows:

BRIEF DESCRIPTION	NSN/PN	QUANTITY	ESTIMATED VALUE
Receiver, Countermeasures for the B-2 Aircraft	NSN: 5865-01-626-3127 FW /	Max 05 each	\$ XXXXXXXXXX
	P/N: 115A900-100		

*If too numerous, attach list of NSNs and AMSC codes.

This acquisition:

4. Type of Contract (may include number of base years) Firm-Fixed-Price, Fixed Quantity



will not include an option.



will include a _____ % option for increased quantity. Total estimated dollar value of option quantity is \$ _____.



will include an option to extend the term of the contract for a period of _____ months, exercisable in increments of _____ months. Total estimated dollar value of all option periods is \$ _____. The maximum dollar value of all option periods is \$ _____.

The total estimated dollar value of this acquisition is: (inclusive of any options) \$ XXXXXXXXXX. The maximum dollar value of this acquisition is: (inclusive of any options) \$ N/A

5. The statutory authority permitting other than full and open competition is 10 U.S.C. 3204(a)(1) – Available from only one or limited number of sources.

6. Efforts to improve DoD Competition in accordance with DFARS 206.303-2:



A Sources Sought notice or Request for Information (RFI) in accordance with DFARS PGI 206.302-1(d) was posted to Contract Opportunities at WWW.SAM.Gov on 02-Oct-2023 resulting in the following:

The Sources Sought Synopsis was posted to SAM.Gov under number FD20302400201 with a closing date of 09-Oct-2024. No sources replied to the posting.



A mass sources sought notice which included NSN(s) _____ was posted to FedBizOpps on _____. Date must be most current FBO posting (i.e., within a six month period). If too numerous, attach list of NSNs.



A waiver of sources sought notice/RFI was approved by the HCA or designee on _____ and is hereby attached.

7. The acquisition is restricted to the only source(s) of supply known to have the capability of furnishing the required supplies/services. Source(s) are:

CAGE	CUI	COMPANY NAME
03640		Lockheed Martin Corporation

The use of authority 10 U.S.C. 3204(a)(1) is based on:

- ☐ AMC 1. Suitable for competitive acquisition for the second or subsequent time.
- ☐ AMC 2. Suitable for competitive acquisition for the first time.
- ☒ AMC 3. Acquire, for the second or subsequent time, directly from the manufacturer.
- ☐ AMC 4. Acquire, for the first time, directly from the manufacturer.
- ☐ AMC 5. Acquire directly from the sole source contractor, who is not the manufacturer.
- ☐ AMSC A. The Government's right to use data in its possession is questionable. This code is under review and will be updated when the review is complete.
- ☐ AMSC B. This must be acquired from a manufacturing source(s) specified on a source control drawing.
- ☐ AMSC C. This part required engineering source approval by the design control activity in order to maintain the quality of the part.
- ☐ AMSC D. The data needed to acquire this part is not economically available.
- ☐ AMSC H. The Government does not have sufficient, accurate, or legible data to purchase this part from other than the current source. This code is under review and will be updated when the review is complete.
- ☐ AMSC K. This part must be produced from class 1 castings under MIL-STD-2175.
- ☐ AMSC L. The annual buy value of this part falls below the screening threshold established by DoD.
- ☐ AMSC M. Manufacture of this part requires use of master or coordinated tooling.
- ☐ AMSC N. Manufacture of this part requires special test and/or inspection facilities to maintain function or system integrity.
- ☒ AMSC P. The rights to use the data needed to purchase this part from additional source(s) are not owned by the Government and cannot be purchased, developed, or otherwise obtained.
- ☐ AMSC Q. The Government does not have adequate data, lacks rights to data, or both. It is not economical to buy the data or rights to the data.
- ☐ AMSC R. The Government does not own the data or rights to the data needed to purchase this part from another source. It is not economical to procure the data or rights to the data.
- ☐ AMSC S. Acquisition of this item is restricted to Government approved source(s) because the item involves military sensitive technology.
- ☐ AMSC U. The cost to the Government to breakout this part and acquire it competitively has been determined to exceed the projected savings over the life span of the part.
- ☐ AMSC V. This part has been designated a high reliability part. Probability of failure would be unacceptable. The engineering activity has determined that data to define and control reliability limits cannot be obtained.
- ☐ AMSC Y. The design of this part is unstable. Engineering, manufacturing, or performance characteristics indicate that the required design objectives have not been achieved.
- ☐ AMSC Z. This part is a commercial/no-developmental/off-the-shelf item.

☒ Other:

The contemplated contract will be for the new manufacture of the Digital PP. This item is being acquired for a subsequent time, directly from the actual manufacturer Lockheed Martin Corporation. The contract is sole source as the data needed to acquire this part competitively is not physically available; it cannot be obtained economically, nor is it possible to draft adequate specifications or any other adequate, economical description of the material for a competitive solicitation. Lockheed Martin Corporation has been the Original Equipment Manufacturer (OEM) contractor for this item under previous contracts and is the only known contractor that has the data, parts, expertise, tools, facility, test equipment, and processes necessary to perform this highly specialized service sufficiently to meet the Government's needs. Efforts on September 25, 2023 by B-2 Supply Chain Loggie to purchase the data use rights or a license from the OEM were unsuccessful. To date, Lockheed Martin Systems Corporation has demonstrated no interest in the Government's action in purchasing data use rights.

NOTE: A technical certification is required for acquisitions over \$13.5 million

8. Efforts to ensure that offers are solicited from as many sources as practicable are:

☒ The acquisition will be synopsisized on or about 05-Jan-2024 and any firm requesting a solicitation copy will be provided one.

☐ A synopsis exception cited in FAR 5.202 applies: (Explain) _____

☐ Manufacturers of similar products identified in the market survey will be solicited.

☐ Dealers of the manufacturers will be solicited.

☐ Other: (Explain) _____

9. I hereby determine that the anticipated cost to the Government will be fair and reasonable. (Explain)

The contracting officer will complete a price analysis. If the proposed dollar amount exceeds the TINA threshold IAW FAR 15.403-4, certified cost or pricing data will be required and a detailed cost analysis will be accomplished. Support from the Defense Contract Management Agency or the Defense Contract Audit Agency may be requested as appropriate to aid in evaluating the proposal.

10. A market survey as defined by FAR 10:

☒ was conducted, and firms indicating an interest in the acquisition will be solicited. Market research efforts, include:
multi-functional team consisting of the Logistics Management Specialist, Engineer, Production Management Specialist and Procuring Contracting Officer. The conducted research consisted of Internet searches, reviews of government databases, reviewed results of recent market research on similar requirements and a Sources Sought Synopsis posting. The market research revealed that there is not a commercial process available to meet this requirement. The Aircraft Digital PP in this system are used in military applications and no commercial or non-developmental substitutes are available. There are no applicable industry standards, regulations, trade journals, or process guides that apply to the manufacture of this item. Market research also allowed the Government team to identify the same sole-source market condition that has existed since these parts originally were manufactured by the OEM. Lockheed Martin Corporation was found to be the only source available able to fulfill the requirement.

☐ was not conducted due to: _____

11. Additional facts supporting other than full and open competition are:

☐ Based upon the technical certification on file, technical data is not available and cannot be developed to permit full and open competition. The data presently available reflects the minimum needs of the Government.

☐ When FAR 6.302-1 is cited for substantial duplication of costs in the case of a follow-on acquisition as described in 6.302-1(a)(2)(ii)(A), an estimate if the cost to the Government that would be duplicated and how the estimate was derived: _____

☐ When FAR 6.302-1 is cited for unacceptable delays in the case of a follow-on acquisition as described in 6.302-1(a)(2)(ii)(B), describe the unacceptable delays: _____

☒ In accordance with 10 USC 2320(d), the Government can provide replenishment parts, for sale or loan, in order that businesses can attempt to reverse engineer this part. However, without proper test equipment, and data the OEM is the Other: only source that could qualify a reverse engineering item. This unique military system would require extensive aircraft testing causing additional delays and costs. The low demand severely inhibits developing competition for this item. Potential interested sources would likely never recoup the initial start-up investment.

12. A listing of sources, if any, indicating an interest in writing in the acquisition are: (if none, state none)

CAGE	COMPANY NAME
	NONE

13. The actions, being taken to overcome barriers to competition before any subsequent acquisition are made: (Explain)

As a result of continued refusal by the OEM to provide or license data there are no know additional actions which can be taken to remove barriers to competition and therefore, specific actions and milestones cannot be established.

APPROVAL

APPROVAL LEVELS OF THE JUSTIFICATION – FAR 6.304

- ☐ not exceeding \$750,000... Contracting Officer
- ☒ over \$750,000 not exceeding \$15,000,000... Competition Advocate
- ☐ over \$15,000,000 not exceeding \$100,000,000... Head of the Contracting Activity

TECHNICAL/REQUIREMENTS PERSONNEL CERTIFICATION – FAR 6.302-2(c)

Supporting data that is the responsibility of technical or requirements personnel and which form the basis for this justification have been certified as complete and accurate by the cognizant technical/requirements Personnel. Signature of technical/requirements personnel is not required.

DLA COUNSEL AVIATION – DLAD 1.691(e)(3)(i)

DLA Counsel Aviation has reviewed this Form S53 and concluded it creates a legally sufficient justification for restricting competition pursuant to 10 U.S.C. 3204(a)(1) and FAR 6.302-1 for acquisitions for NSNs in the federal supply system at or below \$15 million. **For acquisitions above \$15 million, signature of the Aviation Deputy Chief Counsel is required to document legal sufficiency:**

Name and Title	Signature	Phone	Date
----------------	-----------	-------	------

CONTRACTING OFFICER – FAR 6.303-2(b)(12)

I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If not exceeding \$750,000, this signature serves as the approval.

Christopher Lally, Lead Contracting Officer	LALLY,CHRISTOPHER.M	Digitally signed by LALLY,CHRISTOPHER.M Date: 2024.01.25 10:43:28 -0800		05-Jan-2024
Name and Title	Signature	Phone		Date

COMPETITION ADVOCATE – FAR 6.304(a)(2)

The Competition Advocate for the procuring activity designated pursuant to FAR 6.501 has reviewed and hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If over \$750,000, but not exceeding \$15 million this signature serves as the approval.

Tracy Clendennen / Acting Competition Advocate	CLENDENNEN,TRACY.ANN	Digitally signed by CLENDENNEN,TRACY.ANN Date: 2024.01.23 05:48:53 -0800		23-Jan-2024
Name and Title	Signature	Phone		Date

HEAD OF CONTRACTING ACTIVITY – FAR 6.304(a)(3)

The Head of Contracting Activity has reviewed and approved this Justification for a proposed contract over \$15 million, but not exceeding \$100 million.

Name and Title	Signature	Phone	Date
----------------	-----------	-------	------